

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FOURTH SECTION

CASE OF LITVIN AND OTHERS v. RUSSIA

(Applications nos. 37290/19 and 10 others –
see appended list)

JUDGMENT

STRASBOURG

14 May 2024

This judgment is final but it may be subject to editorial revision.



In the case of Litvin and Others v. Russia,

The European Court of Human Rights (Fourth Section), sitting as a Committee composed of:

Branko Lubarda*, President*,
Armen Harutyunyan,
Ana Maria Guerra Martins*, judges*,
and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 11 April 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85,

20 September 2016, concerning the absence of a prosecuting party in the proceedings under the Code of Administrative Offences (the CAO).

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these applications disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a

rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 14 May 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	Branko Lubarda President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	37290/19 24/06/2019	**Yuriy Valeryevich LITVIN** 1996	Dmitriy Igorevich Zakhvatov Moscow	Manifestation against the isolation of the Russian segment of the Internet Moscow 10/03/2019	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/04/2019	Art. 5 (1) – unlawful detention – escorting to the police station on 10/03/2019 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of tribunal in view of the absence of the prosecuting party in the administrative-offence proceedings.	4,000
2.	41334/19 14/07/2019	**Vyacheslav Gennadyevich FITLIN** 1979	Anzhelika Viktorovna Chernyavskaya Oktyabrskiy	Rally against pension reform Novosibirsk 09/09/2018	article 20.2 § 5 of CAO	fine of RUB 5,000	Novosibirsk Regional Court 15/01/2019		3,500
3.	10332/21 15/01/2021	**Nikolay Vladimirovich SHAROV** 1986	Nikolay Sergeyevich Zboroshenko Mytishchi	Manifestation against the construction of South-East Highway Moscow 19/03/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 18/08/2020	Art. 5 (1) - unlawful detention – escorting to the police station on 19/03/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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4.	11096/21 01/02/2021	**Pavel Aleksandrovich BUKHSHTAB** 1980	Memorial Human Rights Centre Moscow	Manifestation against construction of South-East Highway Moscow 19/03/2020	article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 18/08/2020	Art. 5 (1) - unlawful detention - escorting to the police station on 19/03/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
5.	11102/21 01/02/2021	**Konstantin Dmitriyevich KAMENSKIY** 2000	Memorial Human Rights Centre Moscow	Manifestation against the construction of South-East Highway Moscow 19/03/2020	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 20/08/2020	Art. 5 (1) - unlawful detention - escorting to the police station on 19/03/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
6.	11608/21 19/02/2021	**Galina Ivanovna NEKRASOVA** 1976	Mariya Vladimirovna Bontsler Kaliningrad	Rally to support Sergey Furgal Kaliningrad 08/08/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Kaliningrad Regional Court 19/11/2020		3,500

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7.	11676/21 05/02/2021	**Aleksandr Gennadyevich ROSTOVSKIY** 1982	Darya Dmitriyevna Aksenova Kolomna	Manifestation against the construction of South-East Highway Moscow 19/03/2020	article 19.3 § 1 of CAO	fine of RUB 1,000	Moscow City Court 18/08/2020	Art. 5 (1) - unlawful detention - escorting to the police station on 19/03/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
8.	13234/21 01/03/2021	**Artur Pavlovich DAVIDYAN** 1980	Timofey Borisovich Ushakov Kokoshkino	Manifestation to commemorate the fallen in the Second World War Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/09/2020	Art. 5 (1) - unlawful detention – escorting to the police station on 22/06/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
9.	13241/21 01/03/2021	**Eldar Esenbulatovich KAMBULATOV** 1988	Timofey Borisovich Ushakov Kokoshkino	Manifestation to commemorate the fallen in the Second World War Moscow 22/06/2020	article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 02/09/2020	Art. 5 (1) - unlawful detention – escorting to the police station on 22/06/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
10.	14838/21 25/02/2021	**Ildar Ilgizovich GIZATULLIN** 1991	Nikolay Sergeyevich Zboroshenko Mytishchi	Rally against constitutional amendments Moscow 15/07/2020	article 20.2 § 6.1 of CAO	fine of RUB 20, 000	Moscow City Court 04/09/2020	Art. 5 (1) - unlawful detention – escorting to the police station on 15/07/2020 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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11.	38912/21 12/07/2021	**Anastasiya Vladimirovna FILIPCHENKOVA** 1999	Darya Dmitriyevna Aksenova Kolomna	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Moscow City Court 02/03/2021	Art. 5 (1) - unlawful detention – escorting to the police station on 02/02/2021 for compiling an offence report, detention beyond the three-hour statutory period; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

[1] Plus any tax that may be chargeable to the applicants.